

25STLC03333 25STLC03333

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 25STLC03333 Hearing Date: August 25, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Alejandro Diaz's Motion

to Compel Responses to Special Interrogatories, Set One, and Request for Sanctions, is granted. Defendant Maria

Mercy Moreno aka Maria Mercedes Moreno aka Maria M. Moreno aka Mercy Moreno as Trustee of the Maria Mercedes Moreno Revocable Trust Dated December 13, 2018 is to serve verified responses to Special Interrogatories, Set One, without objections, within 20 days' service of this order.

Defendant and counsel of record are jointly and severally ordered to pay sanctions of \$500.00 to Plaintiff's counsel within 20 days' service of this order.

Analysis:

On May 28, 2026, Plaintiff Alejandro Diaz ("Plaintiff")

served Special Interrogatories, Set One, on Defendant Maria Mercy Moreno aka Maria Mercedes Moreno aka Maria M. Moreno aka

Mercy Moreno as Trustee of the Maria Mercedes Moreno Revocable Trust Dated December 13, 2018 ("Defendant"). (Motion,

Mehrban Decl., Exh. A.) Despite a meet-and-confer effort extending the deadline to serve verified responses without objections, Defendant has not served responses. (Id. at ¶¶4-5 and Exh. B.) Plaintiff filed and served the instant Motion to Compel Responses to Special Interrogatories, Set One, and Request for Sanctions, on July 21, 2026. No opposition has been filed to date.

There is no requirement for a prior meet and confer effort before a motion to compel initial responses can be filed. (Code Civ. Proc., §

2030.290.) Further, the motion can be brought any time after the responding party fails to provide the responses.

(Code Civ. Proc., § 2030.290.) Based on Defendant's failure to respond to the propounded discovery, Plaintiff is entitled to an order compelling it to serve verified responses to the discovery requests without objections.

Plaintiff also moves for an award of sanctions under Code of Civil Procedure section 2030.290, subdivision (c), which provides for sanctions if a party unsuccessfully makes or opposes a motion to compel responses without reasonable justification. (See Code Civ. Proc., § 2030.290, subd. (c) ["The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."].) However, Defendant did not file an opposition to the instant Motion.

Plaintiff alternatively cites California Rules of Court, rule 3.1348, which does provide for an award of sanctions "in favor of a party who files a motion to compel discovery, even

though no opposition to the motion was filed." (Cal. Rules of Court, 3.1348(a).) In light of this rule, Plaintiff is entitled to an award of sanctions. Sanctions are awarded against Defendant and counsel of record in the amount of \$500.00 based on one hour of attorney time billed at \$500.00 per hour. (Motions, Mehrban Decl., ¶6.)

Conclusion

Plaintiff Alejandro Diaz's Motion to Compel Responses to Special Interrogatories, Set One, and Request for Sanctions, is granted. Defendant Maria Mercy Moreno aka Maria Mercedes Moreno aka Maria M. Moreno aka Mercy Moreno as Trustee of the Maria Mercedes Moreno Revocable Trust Dated December 13, 2018 is to serve verified responses to Special Interrogatories, Set One, without objections, within 20 days' service of this order.

Defendant and counsel of record are jointly and severally ordered to pay sanctions of \$500.00 to Plaintiff's counsel within 20 days' service of this order.

Moving party to give notice.